

Jagdish Kaushik v. State of U.P.

Allahabad High Court · Division Bench · 24 April 2015 · Criminal Misc. Writ Petition No. 10068 of 2015 · **s.135 FIR not quashed; arrest, if any, to follow CrPC 41(1)(b)/41-A; compounding left to Supply Code 2005.**

HEADNOTE

A Division Bench refused to quash an FIR under s.135 of the Electricity Act, 2003 because it disclosed a cognizable offence. Arrest not having been made, the Court directed that if arrest is contemplated for an offence not entailing more than seven years' imprisonment, police must comply with CrPC ss.41(1)(b) and 41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Jagdish Kaushik invoked the Allahabad High Court's criminal writ jurisdiction to quash the FIR dated 20 March 2015, registered as Case Crime Nos. 181–182 of 2015 under s.135 of the Electricity Act, 2003 at Police Station Kosi, District Mathura. He had not been arrested. Counsel submitted that a proved offence under s.135 could not attract more than seven years' imprisonment, so arrest should not be mechanical, and that the alleged offence was compoundable. The State and the other respondents appeared.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

quashing of s.135 FIR; arrest safeguards; compounding

HOLDING

An FIR under s.135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Where arrest has not been made and the offence cannot carry more than seven years' imprisonment, any arrest must comply with CrPC ss.41(1)(b) and 41-A; if the offence is compoundable the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy s.135 FIR disclosing a cognizable offence left intact; any arrest must follow CrPC 41(1)(b)/41-A; compounding, if available, to be sought under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE IS IN FACT COMPOUNDABLE AND WHETHER COMPOUNDING SHOULD BE GRANTED

Petitioner left to seek compounding under the Electricity Supply Code, 2005 if available. ¶ 1